

Lesson on the 7th of April is not guaranteed!

The class is not confirmed yet, it could be 2L on monday, and 1L on tuesday.

The textbook is given by our own notes, no official textbook.

Two or three students among us is expected to be present and take notes for everyone.

At the end of the course, notes will be sent to the professor, will be corrected, and published on e-learning. Names of the designed students must be submitted before the next lecture.

The assessment: it will not be based solely on the final exam, rather with a progressive assessment. Students engagement is taken into account, participation in discussions, and the final performance.

As for the exam, we must choose one interest and explore it in an essay. The essay must be four pages long, presented orally for up to 15 minutes. Starting from this paper, some questions will be asked. The essay must be sent by email at least one week before the exam date. At exam date, you must also bring a printed copy of the exam reservation (issued on Infostud), and two printed copies of the essay.

We will have a dedicated email address to receive communications.

When writing an email, in the subject write: "CCL26", so that emails can be filtered.

Introduction

Now, let's dive deeper in the "How?" (methodology) and "What?" (object of our study).

Let's consider the name of the course: "Cyber and Computer Law". What is a definition of this name?

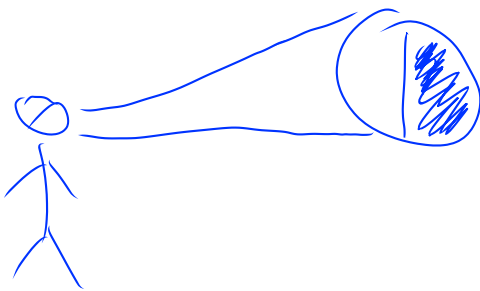
- Cyber: Nowadays, it's used for things related with platforms, algorithms. Originally, however, it comes from the Greek word: κυβερνήτης, and it means "il timoniere", the one who's task is to govern the ?. In the root of this word, there is a precise intention, which means to "govern things, guide it, manage it". In the gaze of cybernetics, there is a manipulative intent, and not merely a contemplation idea of reality (manipulating vs contemplating). In 1965 Heidegger gave a lecture ... From the title, it's clear that it doesn't state that the thought itself comes to an end, rather what ends it's its philosophical form. Why was he sceptical about cybernetics? He sees not simply a scientific tool,

available for multiple services, but rather as a science of control. In this perspective, the reality that surrounds us has no meaning in itself, but according to Heidegger is a *bestand* (pantry). The word is not seen for what it is, rather as a system of resources ready to be calculated, controlled and exploited. This way of understanding reality affects human beings, which from being free is reduced to be a component of the system, a simple data among the others, a numerical string.

- Computer: comes from the Latin word "cum-putare", where "putare" has several meanings converging in one word: the first definition is to "believe/think/consider/estimated"; the second meaning is "calculating"; the third meaning is "cleaning", make some space (in italian: "potare"). The act of thinking is different from the act of calculating. How is thinking different from calculating? *Calculating is deterministic, while thinking is not.* Through history, the two meanings alternated, prevailing over each other, only temporary. With cybernetics, this balance is broken, with the triumph of "calculating" meaning. It's aimed to efficiency. This form of thought (meditative thinking), also has dignity and needs to exists for me, although for cybernetics there is a disappearance of every "useless" thought, where "useless" not as a value but not primarily used for something. The new definition leaves no space for art, contemplation. We can also say that to think and to calculate also shares something, as in order to think and calculate the actor needs to clean the scene.
- Law: Where does this word come from? The act of questioning words, searching among the different layers it has, for a possible meaning, that reveals its history, origin, making comparison with other languages. The first tool we have then is hermeneutics. It comes from the greek word, it's not just an activity, rather it
Initially, the hermeneutics as an art was intended to explain complex and sacred texts, like scripture and laws, but later it became an universal theory of understanding, that reveals how we interpret the world, how we deal with it, following ? Interpretation is the existential tool that enables us to live our life. What can we say about interpretation? Every interpretation of words is situated, it's impossible to interpret a word without the context, the environmental meaning where the text is inserted. Another characteristics is that every interpretation is inherited, our understanding is always embedded in a tradition that influences our reading. The language is not something that we create. Words work differently: by saying "family", in the China of the 16th century has different meaning from the word "family" in 2026 in Italy. To

understand the right colour behind the word, we need to determine the context. Interpretation is also aimed at finding the true meaning of saying things, but Heidegger states that it's not just this, but also unveil the different layers behind words, as they're experienced storages. Little by little, we use words as tools in different fields, and they get richer while it's used, so we need to unveil it to discover all the different layers, thus to bring to light also what is hidden. This work of bringing to light phenomena is the purpose of phenomenology, and this method is the second tool kit in our philosophical purpose. So the first one is hermeneutics, while the second one is phenomenology.

Phenomenology deals with describing phenomena as they appear to us. Starting from our perspective, and making use of the tool of our disposal: eyes, thought and language. It comes from the Greek word *φαινομενον*, which means "I show myself up", "I appear". This idea of showing and appearing is not something we can do autonomously, we need somebody to show to, to appear to.



This is us, observing a phenomenon (like the moon). While we observe, we are clearly situated in some place (not just geographically). We live in a determined age, having our thoughts, traditions, etc. When we observe things, we only see one side, and the other side remains hidden.

Phenomenologists are aware of it, they do not claim their perspective as the only perspective. Phenomenologists would be lying saying that they have the whole truth. So, they are prone to describe what is seen, but also prone to discover the things which cannot be seen, and this can be done through hermeneutics.

Now, let's go back on the definition of "law". Where does law come from? From the latin word "legere", which has different meanings: "reading", "tie". When we read, we tie, collect single letters and words, connecting them in a context. When it's referred to law, however, they have a specific meaning. Animal laws are different from our laws, as the animal's one are purely based on instincts, and we cannot rely on those instincts. Natural laws cannot be respected, while our laws, since it's not inner, we can decide not to respect those. Laws, for humans, have

words. Since they have words, the meaning of laws changes depending on the context. So, "legere" underlies this connection behind a community of speaking people. Also, "legere" is the root of "inter-legere" or "intus-legere". What does it mean? it means to connect something that at first glance is not related. An intelligent behaviour is when we connect something, and make a sense out of it. "Intus" means something a bit different, it means to read something that is inside "deeper", but somehow they're connected, as "intus" is exclusively human. What is the difference between laws and justice? Laws keep changing.

There is a specific phenomena of digital disruption: jurists need to understand what is going on, rearrange their thought, and make laws. But this takes time, and in the meanwhile technology evolves.